

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY-----X
DAVID MILES,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD OFFICER DAVID
YEE, NYPD SERGEANT HAROLD GATES,
NYPD DETECTIVE SAVAGE (f/n/u),
NYPD POLICE OFFICERS JOHN DOES #1-3
(names and numbers of who is unknown at present),
and other unidentified members of the New York City
Police Department,Defendants.
-----X

SUMMONS

Index #

Basis of Venue:
Place of IncidentKings County as
the place of trial

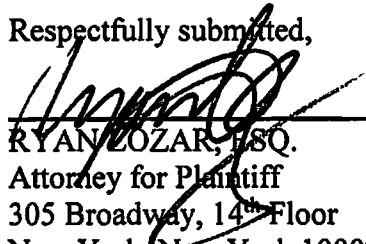
Jury trial demanded

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 7, 2019

Respectfully submitted,



RYAN COZAR, ESQ.
Attorney for Plaintiff
305 Broadway, 14th Floor
New York, New York 10007
(310) 867-1562

CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street, New York, NY 10007

NYPD OFFICER DAVID YEE, 61st Precinct, 2575 Coney Island, Brooklyn, NY 11233NYPD SERGEANT HAROLD GATES, 61st Precinct, 2575 Coney Island, Brooklyn, NY 11233NYPD DETECTIVE SAVAGE (f/n/u), 61st Precinct, 2575 Coney Island, Brooklyn, NY 11233

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COMPLAINT

Index #

Basis of Venue:
Place of Incident

Kings County as
the place of trial

Jury trial demanded

Plaintiff **David Miles**, by his attorney, RYAN LOZAR, Esq., as and for the Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution. In connection with these claims and facts as alleged herein, Plaintiff alleges that Defendants falsely arrested him, fabricated evidence against him, maliciously prosecuted him, used excessive force upon him, and failed to intervene to stop these rights violations from occurring where they had reasonable opportunity to do so. Plaintiff alleges that the City Defendant bears liability for these rights violations under federal law as developed under Monell and its progeny as well.

PARTIES, JURISDICTION, VENUE

2. Plaintiff David Miles is a citizen of the United States and resident of Brooklyn, New York.
3. Defendant NYPD Officer David Yee is and was at all times relevant herein an officer, employee, and agent of the NYC Police Department.

4. Defendant NYPD Sergeant Harold Gates is and was at all times relevant herein an officer, employee, and agent of the NYC Police Department.
5. Defendant Detective Savage (f/n/u) is and was at all times relevant herein an officer, employee, and agent of the NYC Police Department.
6. Defendant NYPD Officers John/Jane Does 1-3 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
7. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, under color of state law, and with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
8. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
9. This Court has jurisdiction over Plaintiff's claims by virtue of damages sought in excess of thresholds in lower courts, and by virtue of its independent and also concurrent jurisdiction with federal courts over the claims alleged herein.
10. Venue is proper here by virtue of the challenged incidents and Defendants' challenged actions taking place within the venue's boundaries, and Plaintiff's residence within.

STATEMENT OF FACTS

11. On Sunday afternoon, May 8, 2016, Plaintiff was at home with his infant son watching a Knicks game on the television in his apartment on the second floor of 2264 Bragg Street, Kings County.
12. On information, and for reasons unknown to Plaintiff, a female resident of the building had meanwhile told police that Plaintiff and Nicki Minaj, a famous entertainer and singer, had together harassed the complainant that day.
13. This was untrue and Defendants knew or should have known it to be untrue. They never encountered Nicki Minaj or any other celebrities at the scene to corroborate the

- complainant's version of events, or learned from third parties or other sources that Nicki Minaj or other celebrities had been at the scene to corroborate complainant.
14. Plaintiff did not and does not know the complainant. Plaintiff did not and has not harassed the complainant. Plaintiff does not know and was not with celebrity Nicki Minaj at 2264 Bragg Street in Coney Island, Brooklyn, as the complainant incredibly told Defendants.
 15. This was untrue and Defendants knew or should have known it to be untrue given the very public nature of complainant's allegations and the purported, implausible involvement of a well-known celebrity in such public events.
 16. Again, Defendants never encountered Nicki Minaj or any other celebrities at the scene to corroborate the complainant's version of events, or learned from third parties or other sources that Nicki Minaj or other celebrities had been at the scene to corroborate complainant.
 17. Stated differently, on interacting with complainant and hearing complainant's allegation as made against Plaintiff, Defendants knew that the complainant was mentally unwell and incredible to the point that her assertions could not establish reasonable probable cause to believe that Plaintiff had committed any offenses, whether for the purposes of detention, questioning, arrest, commencement of a criminal proceeding, or otherwise.
 18. Despite lacking probable cause, Defendants visited Plaintiff three times on the date of his false arrest to inquire about the facially implausible allegations against him by the complainant—again, whom Defendant already knew to be unwell and incredible from their interactions with her and from the facially implausible substance of her allegations.
 19. Despite Defendants' known lack of probable cause to believe from the incredible complainant's implausible statements that Plaintiff had committed any related offenses, Defendants falsely arrested Plaintiff (using unprivileged and therefore excessive handcuffing force upon him in the process) then maliciously commenced and later continued a criminal proceeding against him by forwarding information against him to prosecutors for this purpose, knowing this information to omit the omitted material information that rendered probable cause non-existent. The charges for which Defendants unlawfully arrested and commenced a criminal proceeding against Plaintiff included harassment and menacing of the known-to-be-incredible complainant making the allegations about Plaintiff, Nicki Minaj, and more.
 20. Defendants also forwarded fabricated information to prosecutors in connection with the commenced and later continued criminal proceeding. This was because Defendants omitted material information from their submissions to prosecutors about the complainant's incredibility as the source of probable cause due to the Nicki Minaj stories and other indicia of the complainant's unwellness and implausibility in Defendants' interactions with her. The information which Defendants intentionally failed to disclose was material to a factfinder in connection with the related charges, as evidenced by the factfinder's acquittal of Plaintiff on learning the material fabrications at trial, and accordingly proximately cause

the perpetuation of the unlawful deprivation of Plaintiff's liberty through the needlessly continued criminal based on incomplete information.

21. As a consequence of Defendants' false arrest of Plaintiff without cause and related force, malicious prosecution of Plaintiff without cause, and fabrication of evidence against Plaintiff without cause, they caused Plaintiff damages including, but not limited to, deprivation of liberty for arraignment, court and trial appearances Plaintiff was compelled to make over the course of the ensuing months through the end of 2017. Plaintiff's damages also included, inter alia, anxiety, fear, embarrassment, humiliation, loss of dignity,
22. On or about November 13, 2017, a state court judge acquitted Plaintiff at bench trial after sworn testimony, including complainant's, which again revealed her general unwellness and specific incredibility as to her allegations against Defendants (both of which had already been long known to Defendants as alleged herein and as discovery will further develop).
23. The state court judge's acquittal of Plaintiff was a favorable termination under relevant law.

FIRST CAUSE OF ACTION

VIOLATION OF PLAINTIFF'S RIGHT TO BE FREE FROM FALSE ARREST FOURTH AND FOURTEENTH AMENDMENT RIGHTS

24. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 23 with the same force and effect as if more fully set forth at length herein.
25. The individually named Defendants who were acting in concert, under color of state law, and within the scope of their authority at the NYPD arrested and caused plaintiff to be detained without probable cause, and to suffer other damages as herein stated, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth & Fourteenth Amendments of the Constitution of the United States and to be free of a deprivation of liberty thereunder.

SECOND CAUSE OF ACTION

VIOLATION OF PLAINTIFF'S RIGHT TO BE FREE FROM UNPRIVILEGED AND EXCESSIVE FORCE FOURTH AND FOURTEENTH AMENDMENT RIGHTS

26. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 25 with the same force and effect as if more fully set forth at length herein.

27. The individually named Defendants who were acting in concert, under color of state law, and within the scope of their authority at the NYPD arrested and caused plaintiff to be subjected to unprivileged force which, by virtue of its occurrence in connection with his false arrest, was excessive and violated Plaintiff's rights under the Fourth & Fourteenth Amendments of the Constitution of the United States. This caused Plaintiff damages as noted herein.

THIRD CAUSE OF ACTION

VIOLATION OF PLAINTIFF'S RIGHT TO BE FREE FROM MALICIOUS PROSECUTION FOURTH, FIFTH AND FOURTEENTH AMENDMENT RIGHTS

28. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 27 with the same force and effect as if more fully set forth at length herein.
29. The individually named Defendants who were acting in concert, under color of state law, and within the scope of their authority at the NYPD arrested and caused plaintiff to be unlawfully deprived of his liberty and other damages without probable cause through malicious prosecution in violation of plaintiff's right to be free from the same under the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States. Insofar as Defendants' actions in this regard were made knowing that probable cause was lacking to believe that the complainant's allegations could prove that the commenced and continued charges occurred beyond a reasonable doubt, Defendants acted maliciously and caused the damages herein claimed.

FOURTH CAUSE OF ACTION

VIOLATION OF PLAINTIFF'S RIGHT TO BE FREE FROM FABRICATED EVIDENCE (DENIAL OF FAIR TRIAL) FIFTH, SIXTH AND FOURTEENTH AMENDMENT RIGHTS

30. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 29 with the same force and effect as if more fully set forth at length herein.
31. The individually named Defendants who were acting in concert, under color of state law, and within the scope of their authority at the NYPD arrested and caused plaintiff to suffer unlawful deprivation of liberty and other damages by virtue of their forwarding of materially false information by virtue of their omissions regarding the facial implausibility of the complainant's allegations, her open and obvious mental problems as evidenced by the facial implausibility of her allegations against Plaintiff, and more. Defendants' omissions were of a kind that a factfinder would and in fact did find material to the

proceedings against Plaintiff. With this misconduct, Defendants violated Plaintiff's right to be free from fabricated evidence (also known as a deprivation of fair trial claim) under the Fifth, Sixth and Fourteenth Amendments.

FIFTH CAUSE OF ACTION

FAILURE TO INTERVENE

32. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 31 with the same force and effect as if more fully set forth at length herein.
33. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence and with their knowledge by other members of the NYPD.
34. While acting under color of state law, Defendants failed to intervene to prevent the unlawful conduct described herein.
35. As a result of the foregoing, plaintiff was subjected to the hereinbefore stated claims and related damages.
36. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

MUNICIPAL LIABILITY UNDER 42 USC 1983

37. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.
38. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States. The defendants' failure to protect Plaintiff from known false arrest, malicious prosecution, evidence fabrication despite the need for training and supervision to assure that known, incredible complainants may not be cited as the justification for such violations is a practice and/or custom of the City Defendant's NYPD by virtue of insufficient training, supervision and/or discipline.
39. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to

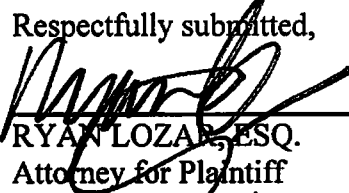
policies, customs and practices wherein New York City Police officers arrest individuals without probable cause, commence and continue baseless criminal proceedings against them, and create false versions of events to justify their actions.

40. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.
41. The foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.
42. As a result of the foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department, plaintiff was unlawfully arrested and prosecuted, and the subject of fabricated evidence.
43. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

WHEREFORE, DAVID MILES, plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

DATED: New York, New York
May 7, 2019

Respectfully submitted,



RYAN LOZANO, ESQ.

Attorney for Plaintiff

305 Broadway, 14th Floor

New York, New York 10007

(310) 867-1562

CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street, New York, NY 10007

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NYPD DETECTIVE SAVAGE (f/n/u), 61st Precinct, 2575 Coney Island, Brooklyn, NY 11233

ATTORNEY'S VERIFICATION

RYAN LOZAR, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the **LAW OFFICE OF RYAN LOZAR, PC**. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge and from Plaintiff and records from the underlying arrest and related court proceedings. As for those matters which are alleged upon information or belief, and as to those matters I believe them to be true.

DATED: New York, New York
May 7, 2019



Ryan Lozar, Esq.